OFFICE OF THE COMMISSIONER OF POLICE: DELHI
ADDENDUM

Addendum to Standing Order No. A-28 (Previous Sanding Order No.229/2009)

The following lines may be added in 5th line after the word "**rejected**" and before the words "**A suitable**" at Point No. 9.6 (Tender Fees) of SO No.A-28 (Previous Standing Order No. 229/2009) relating to procurement of stores and functioning of central stores, Provisioning & Logistics, Delhi issued vide this Hdqrs. endst. No.16151-400/Record Branch/PHQ dated 05.10.2009:-

> "However, firms registered with the Central Purchase Organization (e.g.DGS&D), National Small Industries Corporation (NSIC) for the requisite item/items are exempted from Application Fee. But the bidders will have to submit copy of the Registration Certificate with the technical bid of the tender to avail this exemption. Bidding directly from other agencies viz. Kendriya Bhandar and KVIC are also exempted from deposit of Application Fee"

(BHIM SAIN BASSI)
COMMISSIONER OF POLICE: DELHI

OB No.01/2014

No.01-125/Record Branch/PHQ dated Delhi, the, 07-01-2014

S.O. NO. 229

ADDENDUM

The following para is hereby added in the end of point of 9.11 of Standing Order No. 229 issued vide this hdqrs. No. 16151-16400/Record Branch/PHQ, dated 05.10.2009:-

"DCP/P&L will ensure that a separate room for the tender boxed is earmarked for receipt of tenders, sealing and removal of tender boxes etc., which shall be covered by CCTV monitoring system. The CCTV monitoring system should have provision of running time log for registering date and time of deposition of tender in tender boxes, sealing of tender boxes and their removal for placing them before the designated purchase committees. DCP/P&L will ensure that deposition of tenders in tender boxes/sealing of tender boxes is done in full view of CCTV cameras and at no point any process be hidden from CCTV monitoring. The sealed record of recording made in CCTV monitoring system will also be placed on file of purchase committee for future reference. DCP/P&L will ensure that two CCTV cameras record the entire process of tendering, sealing and removal of tender boxes. At no point of time, these CCTV cameras should be allowed to go off operations and procedure for daily check of the monitoring system should be established and be recorded in a log book. Alternative power supply should also be set up to ensure continuous operations."

(Yudhbir Singh Dadwal)
Commissioner of Police:
Delhi.

O.B.No. 44/RB/PHQ, dated 06/08/2010

No.7001-7250/Record Branch/PHQ, dated Delhi, the 06/08/2010

Annexure-A

SANCTION BOOK REGISTER

Item No.	Description of Stores	Authorised Holding	Present Holding	Quantity ordered	Purpose	Cost of the articles	Accounta-nt's Signatures
1	2	3	4	5	6	7	8

Date of Sanction	Name of the Firm	SCR No.	Stock register ref.	F.V.C Bill No. and date
9	10	11	12	13

21.1 These units will also keep clothing stock account of new articles of clothing and material received from the C.S. (Central Store) and issue in Form 4.34(2). Similarly, a stock account of receipts and issues of clothing and equipments, both new and second-hand and complete Kits of personnel on leave shall be maintained by each unit in Form 4.35.

21.2 These units shall also maintain a Miscellaneous stores register in Form 5.16(1) for all other equipment and Miscellaneous stores received from the Central Stores. The distribution of all such stores will be shown in the distribution register of miscellaneous stores in Form 5.17. A temporary issue of receipt register will also be maintained in Form 5.19. Similarly arms and ammunition etc. shall be issued to the various units for further distribution to their sub-units. For this purpose every unit shall maintain register as prescribed in Chapter 6 of P.P.R. Armourers have been sanctioned for various units who shall look after their arms, etc.

21.3 Control of budget allotment, payment, acceptance of debits keeping track of expenditure and reconciliation of accounts with P.A.Os. will continue to be handled by the Accounts Branch of Prov.&Logistics, Delhi in respect of Central Purchases through P&L and in respect of purchases made by Distt./Units, the concerned Distt./Units shall ensure the proper budgetary control in respect of their Distt./Units.

Superseding clause

22 This Standing Order supercedes previous Standing Order No. 47 issued vide PHQ's No.23460-700/Genl.(IX) dated 5.5.89, Standing Order No. 228 issued vide PHQ's No.10774-850/A-I/PHQ dated 29/03/1989 and Standing Order No. 229 issued vide this office No. 28356-425/A-IV-PHQ dated 29.06.1989.

(Yudhbir Singh Dadwal)
Commissioner of Police
Delhi

O.B. No. 102 /RB/PHQ dated 05.10.2009

No. 16151-400 /Record Branch/PHQ dated, Delhi the, 05.10.2009.

19.1 Central stores will be divided into four sections for its smooth functioning:-

19.2 Central Armoury: This section consisting of 1 SI, 2 HCs & 4 Cts will deal with all arms and ammunition and other ordnance stores, both controlled and un-controlled. The Armourers will also be posted for the repairs and maintenance of arms. It will be supervised by an Inspector.

19.3 Clothing & Equipment (CSA Clothing Store) This section consisting of 2 SIs, 2 ASIs, 2 HCs & 2 Cts will deal with the receipt and distribution of uniforms items and equipments. One tailor, one Cobbler and 3 Khalasis will also be attached with CSA Clothing Store for fitting of uniform and repairs of shoes of the Police personnel posted at PHQ/P&L. It will be supervised by an Inspr.

19.4 Tentage, Furniture & Misc. Stores: (CSA General Store) This section will deal with the receipt and distribution of tentage, furniture and other general store items. It will be supervised by Inspr. CSA.

19.5 Local purchase section :- A purchase section shall also function for arranging the local purchase of stores in accordance with the provisions of GFRs.

Disposal of articles procured through Central stores

20. All articles procured through Central Stores and brought on permanent stock registers of various units shall, on condemnation, be disposed off quarterly by P&L through e-Auction carried out by MSTC. Similarly, articles of perishable nature having sale/disposal value shall also be disposed of in the like manner. However, procedure as per GFRs may be ensured.

Miscellaneous

21. CSA Clothing & General Stores under P&L Unit will supply clothing, equipments and other stores in bulk to the Distt./Units stores. These stores will make further distribution to Police Stations/offices and individuals within that Distt./Unit. Separate staff has been sanctioned for clothing and general stores of Distt./Units for the purpose. The Distt./Unit stores will receive stores in bulk from the CSA and arrange for distribution and maintenance of records. The personnel ledger account of issue of clothing to each individual will be maintained by the unit concerned on P.P.R. Form 4.16. Time expired clothing will also be surveyed and condemned by the units after following due procedure and articles found unfit for use shall be disposed off by P&L through MSTC, by following procedure as per GFRs.

Forecast demands & their processing

17. The Central Stores shall call annual indents and forecast requirement of controlled and un-controlled stores, clothing equipment and other articles to be centrally procured, from all the districts/units.

17.1 The information regarding annual requirement and forecast of various Distt./Units will be collected through CIMS. Such demands would then be checked, consolidated and procurement, arranged as under:-

i) Controlled Stores to be procured through MHA: Yearly forecast and annual demand will be worked out by DCP/P&L Delhi and indents placed in time, i.e. 31st Dec. of every year.

ii) Un-controlled store: The un-controlled stores is to be obtained from the Ordnance Depots.

iii) Stores on Rate Contract & DGS&D R/C : Procurement shall be made by placing supply orders on the DGS&D rate contract by obtaining approval of competent authority on the recommendations of the respective Purchase Committees. Where any other unit has been accepted as a Direct Demanding Officer, the Central Store will furnish details of all rate contracts to enable the said unit to arrange direct procurement of the stores.

Store of general issue - action regarding

18. The General Stores shall arrange for the local purchase of stores of general issue costing less than Rs.1,00,000/- (Rupees one lakh) by following all codal formalities as per GFRs.

18.1 Lay down muster patterns for all kinds of stores and check the counter samples.

18.2 The stores procured against the demand of Districts units will be issued to the General/Clothing Stores or Kot, as the case may be, of the Distts./Units which will be taken in charge of the Distt./Units and then re-distributed to Police Stations/offices. Except special circumstances, items will not be issued to the Police Stations/Sub-Offices/Branches direct from the Central Stores. A distribution register of all items will be maintained in the Central Stores and regular physical checking of holdings of all units and stock in hand arranged.

Supervision and staff

19. The Central Stores will function under the charge of one A.C.P. subject to overall control and supervision of DCP/P&L Six ASI/clerks, Eight Head Constables/Clerks, two Constables Diarist and Dispatcher and two M/Cycle riders will be provided for the office of the ACP for preparation of consolidated statements, indents, etc. and for routine day to day correspondence.

15. General

(1) Powers as detailed in D.F.P.Rs./instructions issued by Govt. of GNCT, Delhi/GOI/CVC must be strictly adhered to and sanctions be taken from the competent authority.

The articles which are required to be purchased by more than one Unit/Distt. under the sanction of Head. Of Deptt., may be grouped together and central purchase of the same as per total requirement be made by DCP/P&L by adopting the due procedure, as per GFRs.

(2) In case of local purchase of articles of stationery and printing of forms etc., DCsP of all Units/Distts. shall themselves obtain non-availability certificate from the Controller of Printing and Stationery before resorting to local purchases.

Nature of goods to be procured

16. The agency shall arrange the procurement of the following goods:-

i) Arms, ammunition and other controlled goods.

ii) Un-controlled ordnance goods with the exception of those which are easily available locally.

iii) Clothing and equipment , including cots, Kit boxes, lathies, shields, helmets etc.

iv) Furniture & Fixtures

v) Technical, Electronics, Security equipments, Computers & peripherals

vi) Tentage

vii) Any other articles required.

16.1 Articles of specialized nature, i.e photo-graphic goods, motor vehicles, wireless equipment & traffic related equipments shall be procured by the DCP/Crime & Rlys., DCP/P&L, DCP/Traffic and DCP/ Communication Delhi respectively or as directed by competent authority. It has to be ensured that while going for hiring/services/ procurement of any item the prior Administrative approval of competent authority may invariably be obtained.

16.2 All tear smoke munition required for use in Delhi Police shall be indented/procured by the DCP/P&L and stocked by DCP/Ist Bn. DAP, Delhi, who shall maintain a proper account of such material and shall deal with all correspondence on the subject on behalf of the C.P. Delhi, send bills for issues made to various States from the MHA's reserve stock and raise debits against States concerned. Budget in respect of tear smoke material will, however, remain at the disposal of DCP/P&L, Delhi.

12. <u>General conditions for tender</u>

(1) Full and proper specifications (including quality of wood whenever available) of the articles required be given in the tender enquiry notice.

(2) The tender notice enquiry will also contain direction for the deposit of samples/earnest money/security money and period of validity of rates tobe offered.

(3) The notices for tenders shall clearly specify the place, date and time by which the replies will be accepted. The tenderers be informed that they or their representatives may be present to witness the opening of tenders on the stipulated place, date and time.

(4) A condition will be added in the tender notices that the firms whose rates are approved will be required to deposit specific percentage of security money which should be 5% to 10% of the value of the order placed with it which is liable to be forfeited by the Govt. if all the terms and conditions are not fulfilled.

(5) The system of abinitio negotiation is to be adopted in special circumstances, e.g., where there is no competition or where there is shortage of capacity.

(6) Purchase through Limited Tender Enquiry may be adopted even where the estimated value of the procurement is more than Rupees twenty-five lakhs, in the following circumstances (Rule 151(ii) of GFRs) :-

(a) The competent authority in the Department certifies that the demand is urgent and any additional expenditure involved by not procuring through advertised tender enquiry is justified in view of urgency. The Department should also put on record the nature of the urgency and reasons why the procurement could not be anticipated.

(b) There are sufficient reasons, to be recorded in writing by the competent authority, indicating that it will not be in public interest to procure the goods through advertised tender enquiry.

(c) The sources of supply are definitely known and possibility of fresh sources(s) beyond those being tapped, is remote.

13. Late bids i.e bids received after the specified date and time of receipt should not be considered (Rule 173 GFRs).

14. The purchase committee shall have the comparative statement of rates, prepared on the date of opening of tenders. The terms, condition and taxes to be levied etc. must also be incorporated in this statement dealers as possible through Speed Post/Registered Post/Courier/ e-mail in order to obtain more responsive bids on competitive basis.

10.4 Minimum Number of participant firms in Limited Tender

The number of supplier firms in Limited Tender Enquiry should be more than three.

10.5 Conditions for Limited Tender

An application fees of Rs. 200/- in the form of Bank Draft in favour of DCP concerned is required. However, all other requirements/ conditions as applicable for Open Tenders are equally applicable to Limited Tenders as well.

11. Single Tender Enquiry (Rule 154 GFR)

The procurement through single source be resorted to only in the following circumstances:-

a) When it is known to the department that only a particular firm is the manufacturer of the required goods.

b) In a case of emergency, the required goods are necessarily to be procured from a particular source and the reason for such decision is to be recorded and approval of the competent authority obtained.

c) For standardization of machinery or spare parts to be compatible to the existing sets of equipment (on the advice of a competent technical expert and approval by the competent authority), the required item is to be purchased only from a selected firm.

Note: Proprietary Article Certificate in the following form is to be provided before procuring the goods from a single source as per Note below Rule 154 under the provision of sub Rule 154(i) and 154 (iii) as applicable.

(i) The indented goods are manufactured by M/s ....

(ii) No other make or model is acceptable for the following reasons :-

....

....

....

(iii) Concurrence of finance wing to the proposal vide :-

....

(iv) Approval of the competent authority vide : ...."

"(Signature with date and designation of the Procuring Officer)" distribution be made to the Districts/Units concerned strictly as per their indents. The bills be verified by ACP/CSA on the basis of the SCR and the entry made in the Register. The Incharge of the stores concerned shall ensure that the duly verified bills are transmitted to the Account Branch through the CSA Branch. In case of DGS&D supplies, a copy of the Inspection Notes be returned to the firms concerned through the CSA Branch without any delay in such a manner that the Inward Claims are also cleared within the same financial year.

9.25 Punitive Actions as per Terms & Conditions

Wherever the contractors/firms have not supplied the consignments as per the approved sample, the consignments may be straight away rejected and the firm asked to deliver the supplies as per the specifications, within the period, as to be specifically quoted in the tender documents. Failure on the part of the firms to deliver the goods as per the sample on a second time, the supply order may be cancelled and security deposit forfeited, entailing blacklisting of the firm etc. as already incorporated in the terms and conditions of the tender. However, issuing of a Show Cause Notice in such an eventuality will precede the proposed action.

10. Procurement of Articles/goods through Limited Tender (Rule 151 GFRs)

10.1 Value of Limited Tender

Districts/Units, except the P&L and Communication Units can process for procurement of articles up to Rs.5 lacs. In case of the P&L and Communication Units, the process of Limited Tender is upto Rs. 25 Lacs.

10.2 Purchase Committee for Limited Tender

The Districts/Units concerned may constitute a Purchase Committee every year. The Committee should have the approval of the competent authority (PHQ).

10.3 Vetting of Limited Tender Documents and publicity

Similar to that of Open Tender system, Tender Documents shall be prepared, got vetted from L.A. to C.P. and F.A. to C.P. However in cases of re-tendering the vetting of Terms and Conditions is not required provided that there is no change in Terms and Conditions. The limited tender enquiry shall also be put on the Delhi Police Website and website of GNCT of Delhi as well as on the NIC Website either directly by the Districts/Units concerned or through P&L Unit in all procurement cases exceeding the value of Rs.1 lakh. The Tender documents should also be sent to as many known firms/

compare the goods with the advance sample and satisfy itself with the quality, feel, finish, weight and other measurements. In case of such articles, which require lab-testing, the same may be sent for lab-testing, the cost of which will be borne by the firm concerned as at Clause 9.21. Random checking of items received will be done and sent to lab testing discreetly. Failure of the item in lab testing will entail rejection of all the goods supplied. An appropriate receipt, in terms of the relevant contract provisions may also be given to the supplier on receiving the supply.

Any loss/damage to goods that may have occurred during transit should be notified to the supplier/contractor within 30 days of the arrival of the goods at destination as laid down in the Govt. of India, Dept. of Supply, New Delhi's O.M. No. P-III 8(2)/77 dated 28.6.1978. Intimation should also be sent to DGS&D and Controller of Accounts concerned wherever the cases relate to them to effect deduction from the firm's bills.

In most cases where the firms are required to supply goods and materials free on Rail (FOR), responsibility for lodging of claims with railways rests with the officer receiving the goods. In all such cases, the claim for shortages shall be lodged with the Railway authorities.

Bales received securely packed (with no outward signs of damage during transit) should be opened and checked in the presence of Survey Committee. The Survey Committee shall adopt the following procedure, when any shortage is discovered in the consignment:-

(a) Ascertain whether seals of the bundle, (containing less number of articles than those mentioned in the label), are intact or not.

(b) (i) In case a seal is found broken the supplier shall be informed accordingly at the earliest, through usual channels.

(ii) The Survey Committee shall ascertain the gross weight of the bale (containing the lesser number of articles), the weight of the packing material, net weight of the articles received and also the number of articles mentioned by the suppliers in the bundle and the bale and shortage noticed, to ascertain whether the shortage has occurred at the suppliers level or during transportation.

(c) The packing or wrapping material shall be retained (and not destroyed) for return to the supplier at his cost with seals thereon intact. In such cases, claim for shortage will be lodged with the supplier under intimation to the DGS&D.

9.24 Distribution of goods

Immediately on receipt of the goods and preparation of the Survey Committee report the goods be taken into the Stock Register and specification within the period as already enumerated in the tender documents. A suitable clause may be indicated in the terms and conditions of the tender for performance security to be deposited by the successful bidder, which should be 5% to 10% of the contractual value. Specific percentage of performance security may be mentioned in the terms & conditions.

9.19 Laboratory Testing and Issuing of Supply Order

One set of the samples so received from the successful bidder be sent to a National Accredited Board of Testing and Caliberation Laboratories (NABL) or a government laboratory for the purpose of testing.

9.20 Negative Lab Reports

In case the samples tested are not as per the specification annexed with the tender documents, the award of the contract may be cancelled and security deposit of the firm forfeited, as per the terms and conditions.

9.21 Cost of Laboratory Testing

The cost of lab testing be borne by the firms concerned, subject to inclusion of the condition in the tender document.

9.22 Where the lowest bidder is not in a position to supply the adhoc-requirement (Rule 160(xiv) GFRs)

Wherever the lowest acceptable bidder against ad hoc requirement is not in a position to supply the full quantity required, the remaining quantity, as far as possible, be ordered from the next higher responsive bidder at the rates offered by the lowest bidder, with the prior approval of competent authority.

9.23 Receipt of Goods and Materials (Rule 186 to 189 GFRs)

While receiving goods and materials from a supplier, the officer-in-charge of store shall refer to the relevant contract terms and follow the prescribed procedure for receiving the materials/goods.

All goods and materials shall be counted, measured or weighed and subjected to visual inspection at the time of receipt to ensure that the quantities are correct, the quality is according to the required specifications and there is no damage or deficiency in the materials. Technical inspections wherever required, should be carried out at this stage by technical committee nominated by PHQ.

Supply of goods and materials received either through the DGS&D or through tender process, shall be thoroughly inspected by a Survey Committee of officers nominated by PHQ. The Committee may

9.13 Dealing With Registered Dealers Only

No interactions/purchases from dealers who are not registered with Sales Tax/VAT/Service Tax Department etc. may be made. It should be ensured by all Distt./Units that while submitting proposal for obtaining expenditure sanctions, copies of registration certificate for VAT/TIN/Sales Tax/Service Tax, etc. may invariably be enclosed with the proposals and the registration Nos. may be specifically mentioned on their bids.

9.14 Opening of financial Bids (Rule 152 GFRs)

The financial bids may be opened by the Purchase Committee in respect of only the technically qualified firms on receipt of the recommendations of the Technical Committee. In all cases other than those requiring the technical evaluation report, wherever detailed specifications/parameters are reflected in the tender documents, the Purchase Committee may open the financial bid of the technically qualified bidders for further evaluation and ranking.

9.15 Conditional financial Bids

The Price Bids should contain only the Prices. No conditional price bid shall be accepted by the Purchase Committees.

9.16 Procurement of goods without specifications

Wherever the specifications/parameters of the goods to be procured are not determined or it is decided that the same should be on the pattern of the previous stock or of an improved version, suitable clauses be incorporated in the terms and conditions asking the Tenderers to submit a sample(s) along with the technical bids. The Purchase Committee/Technical Committee may satisfy itself with the samples before the financial bids are opened. However, in case of cattle feeds, cereal, etc., the financial bids of the items which are qualified in the lab tests only are to be opened.

9.17 Expenditure Sanction

Expenditure sanctions of the competent authority may be obtained by the Districts/Units immediately after the exercise as at clause 9.11 and 9.16, has been completed.

9.18 Performance Security Deposit (5 to 10% of the Contractual value) (Rule 158 GFRs)

On receipt of the expenditure sanction of the competent authority, the concerned firm may be asked to deposit the performance security irrespective of any registration status in the form of an account payee demand draft/fixed deposit receipt or a bank guarantee from a commercial bank along with 3 advance samples of the main supply as per the

the specifications and other allied technical details of plants, equipment and machinery mentioned in the bidding documents to enable the bidders to have complete details of the goods before submission of the tenders. The date should be sufficiently ahead of bid opening date. This would also facilitate them to have a physical survey of areas, where the project has to be implemented.

9.11 Maintenance/opening of Tender Box

Receipt and custody of tenders shall be done in a transparent manner. Tenders are to be received only through tender box. The tender box should be located in a place, which is easily accessible to the parties for dropping their tenders. The tender box shall be sealed at the close of the date and time for receipt of the tender. The tender box shall have two locks. Key of one lock will be with the Head of Office and the other key with the official nominated by him. On each occasion of tender opening, the tender box will be opened by two officials at the prescribed date and time in the presence of Purchase Committee and the tenders will be taken out.

There may be cases where the tenders are too bulky to be put in the tender box, therefore, such tenders are to be submitted by hand. In such cases, it should be ensured that names and designations of at least two officers, who will receive the tenders, are prominently mentioned in the tender documents. The information about these officers should also be displayed at the entrance / reception of the premises where tenders are to be deposited. The officer receiving a tender is to give the bearer of the tender a receipt duly signed by him with date and time of receipt of the tender. A separate register is to be maintained for keeping records of the bids, received by hand. Such bids will be kept in safe custody with the Head of Office or his authorized representative till the date and time of bid opening and then such bids will be handed over to the Purchase Committee.

Sometimes, tenders are also received by post. Such tenders shall be received and documented in identical manner as applicable for tenders received through hand delivery.

In case of fulfillment of the technical documents, the Purchase Committee may refer the case to the Technical Evaluation Committee where required for the necessary technical evaluation of the equipments/goods. The financial bids be separated and got sealed and kept in the safe custody of the Purchase Committee.

9.12 Conditional Tender Documents

No conditional tender should be accepted.

tenders, failing which the tender of the firm concerned shall be rejected. A suitable clause may invariably be included in the terms and conditions of the tender in this regard.

9.7 Earnest Money Deposit – (Rule 157 GFRs)

Specific amount of earnest money deposit should be indicated in the terms and conditions of the tender which should be between 2% and 5% of the estimated value of the goods to be procured in the form of an Account Payee Demand Draft/Fixed Deposit Receipt/Banker's Cheque or Bank Guarantee from any of the commercial Banks in an acceptable form, safeguarding the purchasers interest in all respects shall also be submitted by the bidders along with the tender documents, failing which the tender shall be rejected. However, firms who are registered with the Central Purchase Organisation (DGS&D), NSIC are exempted from EMD. However, copy of the Registration Certificate have to be enclosed with the technical bid of the tender. Bidding directly from other agencies, viz. Kendriya Bhandar and KVIC are also exempted from deposit of EMD.

9.7 Bidding Documents – (Rule 155 GFRs)

The bidding/tender documents be prepared in such a manner that the bidders do not have any confusion on any of the process in the terms and conditions of the tender. As per Rule – 155 of General Financial Rules, the bidding documents may have 7 Chapters as under :-

(i) Chapter – 1 : Instructions to bidders
(ii) Chapter – 2 : Conditions of Contract
(iii) Chapter – 3 : Schedule of requirements
(iv) Chapter – 4 : Specifications and allied technical details
(v) Chapter – 5 : Price schedule (to be utilized by the bidders for quoting their prices)
(vi) Chapter – 6 : Contract Form
(vii) Chapter – 7 : Other standard forms, if any to be utilized by the purchaser and the bidders.

9.8 Vetting of Tender Documents

The Bidding documents be got vetted from L.A. to C.P and F.A. to C.P. In cases of re-tendering the necessity of vetting the Terms and Conditions is not required, unless there is any change in the Terms and Conditions.

9.10 Pre-Bid Conference – (Rule 160(viii) GFRs)

For procurement of sophisticated and costly equipments, the dept. can specify a date time and place in the tender documents for a pre-bid conference for clarifying issues and clearing doubts, if any, about

9. Procedure for Procurement of goods/Articles/Equipments through Advertised Tender Enquiry (Open Tender) – (Rule 150 GFRs)

9.1 Tender Value

Procurement of goods/articles/equipments of estimated value Rs.25 Lakh and above is done through open tender.

9.2 Tender Notices

Tender notices shall be published in Indian Trade Journal, one national daily having wide circulation, besides, the NIC Website and the website of Delhi Police and the website of GNCT Delhi. Tender documents may also be posted to known manufacturers/suppliers by Registered Post/Speed Post/Courier/E-mail. The newspaper notices should also indicate the website addresses prominently.

9.3 Period for submission of Tender Notice – (Rule 150(v) and Rule 160(xi) GFRs)

Ordinarily the minimum time to be allowed for submission of bids should be 3 weeks from the date of publication of the notice or availability of bidding documents for sale, whichever is later. Bidders should not be permitted to alter or modify their bids after expiry of the dead line for receipt of bids and late bids should not be accepted.

9.4 Foreign Bidders – (Rule 150(iv & v) GFRs)

In case of sophisticated/costly equipments, where the Delhi Police feels that the required quality, specifications, etc. may not be available in the country and it is necessary to look also for suitable competitive offers from abroad, it is necessary the Delhi Police should send copies of the tender notices to the Indian Embassies abroad as well as the Foreign Embassies in India through Ministry of Home Affairs, Govt. of India. The selection of the embassies will depend on the possibility of availability of the required goods in such countries. However, in such cases, the minimum period for submission of bids be kept as 4 weeks for both domestic and foreign bidders.

9.5 Indian currency and legal jurisdiction

In case of tenders, which are likely to have bidders from abroad, a suitable clause may be included in the tender documents, that the payment will be made in Indian currency and that any aspects arising out of the purchase process will be subjected to Indian Laws and that too within the jurisdiction of National Capital Territory of Delhi.

9.6 Tender Fees

An application fee of Rs. 500/- or above as to the cost of stationery/ man-hours spent on the preparation of tender documents, in the form of an Account Payee Demand Draft, be accompanied in all the

(2) The Central Purchase Organisation (e.g. DGS&D) should host the specifications, prices and other salient details of different rate contracted items, appropriately updated, on the website for use by the procuring department.

8. Constitution of purchase / inspection committee

8.1 For the proper discharge of its function, the Central Stores shall be assisted by Technical Committee, Purchase Committee and Survey Committee to be nominated by PHQ every Year.

8.2 Purchase Committee for open tenders will be constituted by PHQ comprising Jt.CP, 2 other DCsP, 1 ACP to be nominated by PHQ and 1 JAO/AAO of F.A Br. PHQ. (Purchases above Rs.25 Lakhs.)

8.3 Purchase Committee for limited tenders will be constituted by PHQ comprising DCP/P&L, 2 ACsP to be nominated by PHQ and 1 JAO/AAO of F.A. Br. PHQ. (Purchases above Rs.5 Lakhs upto 25 Lakhs)

8.4 The specifications of the items to be purchased and the selection of the supplier(s) on DGS&D Rate Contract has to be taken by the Purchase Committee constituted by PHQ for limited/open tenders, as the case may be. The proceedings of the Purchase Committee shall be accompanied with each such Purchase proposal for formal approval of the Head of Department/competent authority.

8.5 Purchase Committee at Distt./Unit level will separately be constituted for purchases up to Rs.5 Lakhs by PHQ.

8.6 Technical Committees will be constituted by PHQ to make specifications for different technical equipments and for their evaluation.

8.7 All the articles/goods received by the Central Stores shall be inspected centrally by the Survey committee to ensure that these conform in the quality and quantity, to the specifications and committee report prepared before the goods are accepted and payments made. Technical Inspection for Technical equipments and electronic gadgets should be carried out by Technical Committee approved by PHQ for the purpose before the goods are accepted and taken on stock.

8.8 Whenever tenders (open or limited) for central purchase are called, the bids shall invariably be opened by the Purchase Committee in the presence of the representatives of the firms as per terms and conditions of the tender. The committee shall also make a careful comparison of the samples, received, if any, judge their utility and make specific recommendations on the comparative statement of rates giving full justification for the proposed recommendations before submitting purchase proposals for obtaining expenditure sanction of the competent authority.

Purchase of goods upto the value of Rs. 15,000/- (Rupees Fifteen Thousand) only on each occasion may be made without inviting quotations or bids on the basis of a certificate to be recorded by the competent authority in the following format :

"I, (Name of the competent Authority), am personally satisfied that these goods purchased are of the requisite quality and specification and have been purchased from a reliable supplier at a reasonable price."

5. Purchase of goods exceeding the value of Rs.15,000/- but less than Rs. 1,00,000/- Purchase of goods by Purchase Committees (Rule 146 GFRs)

Each District/Unit must have a Local Purchase Committee consisting of 3 members of an appropriate level as decided by the Head of Department for purchase of goods costing above Rs. 15,000/- and upto Rs. 1,00,000/- only on each occasion. The Committee will survey the market to ascertain the reasonableness of rate, quality and specifications and identify the appropriate supplier. Before recommending placement of the purchase order, the members of the Committee will jointly record a certificate as under [Rule 146 GFRs]:

"Certified that we (Name of members) members of the Purchase Committee are jointly and individually satisfied that the goods recommended for purchase are of the requisite specification and quality, priced at the prevailing market rate and the supplier recommended is reliable and competent to supply the goods in question."

6. Registration of suppliers: As per Rule 142 of GFRs registration of suppliers with a view to establishing reliable sources for procurement of goods commonly required for Government use, the Central Purchase Organization (e.g. DGS&D) will prepare and maintain item-wise lists of eligible and capable suppliers. Such approved suppliers will be known as "Registered Suppliers". The Department may utilize these lists as and when necessary. Such registered suppliers are prima facie eligible for consideration for procurement of goods through Limited Tender Enquiry. A Head of Department may also register suppliers of goods which are specifically required by that Department or Office.

7. Purchase of goods directly under DGS&D rate contract (Rule 147 GFRs)

(1) In case, department directly procures from Central Purchase Organisation (e.g. DGS&D) rate contracted goods from suppliers, the prices to be paid for such goods shall not exceed those stipulated in the rate contract and the other salient terms and conditions of the purchase should be in line with those specified in the rate contract. The department shall make its own arrangement for inspection and testing of such goods where required.

3. **Maintenance of Sanction Book Register**

Purchases are to be made only when the funds are available. Each Distt./Unit should maintain a sanction book register Annexure A, in the enclosed proforma in respect of purchases which are within the competence of the Head of the Office. This register should be maintained up to date and submitted to the Head of the Office alongwith every proposal so as to enable him to satisfy that the purchase is actually justified by comparing the existing holding and that funds under the budget sub-head are available. In respect of purchase of stores which are not within the financial competency of the Head of Office, an extract of Col.2 to 7 of the above mentioned register should also be sent to the PHQ while applying for approval/sanctions. The PHQ's letter of sanction will be quoted as authority in Col.9 of the register. The actual value of articles will be entered in Col.7 and the survey committee and stock register numbers in Cols.11 & 12 respectively. Finally where the bill is paid, the contingent bill and voucher number can be quoted in Col.13. The allotted funds shall be quoted at the top of the page and the expenditure incurred is totalled from page to page and brought forward with balance funds available as on date. The Head of Office should know straightway, while sanctioning an expenditure that funds are available under that sub-head, so that he may accord sanctions correctly in accordance with the provisions of GFRs/ DFPRs.

3.1 In respect of articles which are purchased by the Dy. Commissioner of Police, Prov. & Logistics on the basis of annual indents and the payment made by the Dy. Commissioner of Police, Prov. & Logistics, the same are to be entered in the Sanction Book Register to be maintained by the Dy. Commissioner of Police, Prov.& Logistics, Delhi only.

3.2 For each sub-head under contingency, there should be a separate running serial number, thus the register can be paged and divided accordingly. In fact with careful division and proper maintenance each register can last for 2-3 years and also serving as a ready reckoner for years. This will also avoid the need for searching for old files and save considerable time.

3.3 Where no ceiling/limit of expenditure is fixed for contingent charges, the keeping of sanction registers is not necessary. A report regarding availability of funds from the Accountant through DDO concerned is sufficient. In such cases, however, the Distt./Units concerned should note the same under the appropriate head of account.

4. **Purchase below Rs.15,000/-**

Purchase of goods without quotation. Rule 145 GFRs is reproduced below :

STANDING ORDER No. 229/2009

PROCUREMENT OF STORES AND FUNCTIONING OF CENTRAL STORES, PROVISIONING & LOGISTICS, DELHI.

Introduction

The Central Stores, Prov. & Logistics primarily deals with procurement and distribution of stores/items/articles required by Delhi Police. This job is done by Central Supply Agency (CSA) by following the rules and regulations laid down in GFRs and other relevant instructions. The distribution of Stores is carried out by CSA General Store. The working procedure adopted for the procurement and distribution of stores has maintained high quality of work as per specification of ISO 9001:2000.

1. Functions of Central Store

The function of the Central Stores is to obtain requirements of all articles of general utility, from all Distt/Units, consolidate them and arrange for the procurement and distribution. The Central Stores procure/stores through DGS&D, Ordnance Depots, Limited/Open Tenders, etc.

2. Procurement of Stores

The Central Stores of P&L as also other Distt./Units will effect purchase of stores as per the following procedure:

(a) All purchases of stores for use in the public service shall be regulated in strict conformity with the store purchase Rules and the instructions regarding procedure laid down for such purchases by the Government of India in its various instructions including GFRs, DFPRs and CVC guidelines or instructions issued from time to time.

(b) Purchases shall be made in the most economical manner in accordance with the definite requirement for the public service. Stores shall not be purchased in small quantities. Periodical indents shall be prepared and as many articles as possible shall be obtained by means of such indents. At the same time, care shall be taken not to purchase stores much in advance of actual requirements, if such purchase is likely to prove unprofitable to Govt. Where scale of consumption or limits of stores have been laid down by competent authority, the officer ordering a supply shall certify on the purchase order that the prescribed scale limits are not exceeded.

(c) Purchase orders shall not be split up/divided into small quantities to make piecemeal purchases to avoid the necessity for obtaining sanction of the higher authority required with reference to the estimated value of the total demand (Rule 148 of General Financial Rules).